

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	Economic Stability (ES)
	Part No./Name	B-ELIGIBILITY FACTORS
	Section No./Name	B-1200-FITAP SUPPORT ENFORCEMENT SERVICES
	Document No./Name	B-1240-FITAP Good Cause Determination (CSE)
	Effective Date	March 1, 2017

I. STATEMENT OF POLICY

* Each applicant for or recipient of cash assistance benefits must cooperate in obtaining child support for the child (ren) for whom they are applying or receiving cash assistance benefits unless good cause is established. **

B-1241-FITAP - * PO ** GOOD CAUSE SITUATIONS AND ACCEPTABLE DOCUMENTATION

Good cause exists when:

1. The client's cooperation with Child Support Enforcement (CSE) is reasonably anticipated to result in:

- Physical harm to the child or caretaker relative which reduces his capacity to care for the child adequately, or
- Emotional harm to the child or caretaker relative which reduces his capacity to care for the child adequately.

Physical or emotional harm is considered domestic violence. Refer to [E-330-FITAP](#) for procedures and documentation used to establish good cause based on domestic violence.

2. One of the following situations exists and proceeding would be detrimental to the child:

- The child was conceived as a result of incest or rape.

Documentation - birth certificates or medical or law enforcement records which indicate the circumstances surrounding the child's conception.

- Legal proceedings for the adoption of the child are pending before a court.

Documentation - court documents or other records.

- The client is being assisted by a licensed or private social agency to resolve the issue of whether to keep the child or relinquish him for adoption. The issue must not have been under discussion more than three months.

Documentation - a written statement of facts from a public or licensed private social agency.

B-1241-1-FITAP - * PO ** Optional Documentation for Good Cause

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In addition to the specific documentation previously listed, the worker may accept statements from persons other than the applicant who have knowledge of the circumstances which are the basis for the good cause claim.

B-1242-FITAP - * PO ** HOW TO ESTABLISH GOOD CAUSE

A good cause determination is based on documentation supplied by the client that *** substantiates **** the good cause claim.

B-1243-FITAP - * PO ** INVESTIGATING A GOOD CAUSE CLAIM

1. When the claim is based on physical or emotional harm, refer to Domestic Violence Option found in [E-330-FITAP](#).
2. An investigation on good cause claims other than those based on physical or emotional harm may be conducted when a decision cannot be made on the client's statement and documentation provided but the claim is credible.
 - Contact the client and request the additional documentation.
 - Assist the client in obtaining documentation that the client cannot be expected to obtain.

B-1244-FITAP - * PO ** RESERVED

B-1245-FITAP - * PO ** OBTAINING CSE'S RECOMMENDATION

Before making the final good cause determination for reasons other than domestic violence (refer to [E-330-FITAP](#), Domestic Violence, section E-336) give CSE an opportunity to review and comment on the proposed determination. Consider CSE's recommendation in making the final determination.

B-1246-FITAP - * PO ** GOOD CAUSE NOTICE

When good cause is claimed:

- Enter appropriate information on the Absent Parent Screen regarding the pending good cause claim.

When the final determination is made:

- Enter appropriate information on the Absent Parent Screen regarding good cause determination.
- Send *** an [OFS 19A](#) **** to the client advising of the final determination and, if the claim is denied, of:

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- The right to withdraw the application or request closure, and
- The right to a fair hearing.

B-1247-FITAP - * PO ** REVIEW OF GOOD CAUSE DETERMINATION

Review at redetermination good cause claims which are subject to change in order to determine:

- If client continues to claim good cause,
- If the original documentation remains valid, and
- If good cause still exists.

To rescind the good cause determination, send * an OFS 19A ** to the client advising of:

- The reason good cause no longer exists,
- The right to request closure, and
- The right to a fair hearing.

If a fair hearing is not requested within 13 days enter the appropriate information on the Absent Parent screen.

II. PROCEDURES

A good cause waiver should be pursued if the applicant or recipient believes that cooperation would not be in the best interest of the client or child.

*** B-1241-FITAP - PR GOOD CAUSE SITUATIONS AND ACCEPTABLE DOCUMENTATION**

There are no procedures associated with this policy.

B-1241-1-FITAP - PR Optional Documentation for Good Cause

There are no procedures associated with this policy.

B-1242-FITAP - PR HOW TO ESTABLISH GOOD CAUSE **

Allow the applicant 20 days to provide the documentation for the good cause claim. The final determination must be made within 45 days unless the case record contains documentation that:

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- The client could not, due to unusual circumstances, provide the documentation within 20 days, or
- The worker needs additional time to obtain the documentation required to verify the claim.

Extend the deadline if additional time is needed to establish the good cause claim due to exceptional circumstances. Document the reasons for extending the deadline. Obtain supervisory approval.

Evaluate the documentation provided by the client and determine if it is sufficient to establish good cause. Conduct an investigation, if necessary. Document the worker's and supervisor's good cause decision.

Do not delay processing the application or redetermination because of the good cause claim.

*** B-1243-FITAP - PR INVESTIGATING A GOOD CAUSE CLAIM**

There are no procedures associated with this policy.

B-1244-FITAP - PR RESERVED

B-1245-FITAP - PR OBTAINING CSE'S RECOMMENDATION

There are no procedures associated with this policy.

B-1246-FITAP - PR GOOD CAUSE NOTICE

There are no procedures associated with this policy.

B-1247-FITAP - PR REVIEW OF GOOD CAUSE DETERMINATION

There are no procedures associated with this policy.

III. FORMS AND INSTRUCTIONS

[OFS 019A Form/Instructions Notice of Action](#)

IV. REFERENCES

[Title IV of the Social Security Act, Sec. 408](#)

[LAC 67:III.1239 **](#)